

24AHCV00148 24AHCV00148

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-08-28
Motion: DEFENDANT CHI CHEN SHUE'S MOTION FOR SUMMARY JUDGMENT
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Case Number: 24AHCV00148 Hearing Date: August 28, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

ANTONIO GUACHIAK CARAC,

Plaintiff(s),

vs.

CONSOLIDATED
DISPOSAL SERVICE, LLC, et al.,

Defendant(s).

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CASE NO.: 24AHCv00148

[TENTATIVE]

ORDER RE: DEFENDANT CHI CHEN SHUE'S MOTION FOR SUMMARY
JUDGMENT

Dept.

3

8:30

a.m.

August

28, 2026

I.

INTRODUCTION

Defendant

Chih Chen Shue ("Defendant"), as trustee of the Tang Lang Shue Family Trust
("Trust") moves for summary judgment against the complaint filed by plaintiff
Antonio Guachiac Carac ("Plaintiff") and the cross-complaint of Consolidated
Disposal Service, LLC dba Republic Waste Services of Southern California, LLC
("Consolidated Disposal Service") on the grounds that Plaintiff was an

independent contractor and Defendant did not owe Plaintiff a duty In the alternative, Defendant moves for summary adjudication of Plaintiff's causes of action for violation of Labor Code section 3706 and premises liability, in addition to each of Consolidated Disposal Services' claims for indemnification, apportionment of fault, and declaratory relief asserted in its cross-complaint.

Plaintiff

filed an opposition on August 7, 2026.

Defendant

filed a reply on August 17, 2026.

II.

LEGAL STANDARD

In reviewing a motion for summary judgment or summary adjudication, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, "shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action." (*Ibid.*) "If the plaintiff cannot do so, summary judgment should be granted." (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

III.

EVIDENTIARY OBJECTIONS AND REQUESTS FOR JUDICIAL NOTICE

A.

Plaintiff's

Evidentiary Objections

Plaintiff's Objections do not conform

with the formatting requirements set forth in California Rules of Court, rule

3.1354 because Plaintiff does not quote or set forth the objectionable

statement or material. The Court additionally notes that because Plaintiff

"objections" are to the way Defendant has characterized evidence in its

separate statement, not to its admissibility. Accordingly, the Court declines

to rule on Plaintiff's "evidentiary objections."

B.

Defendant's

Evidentiary Objections

Defendant's Objections Nos. 1 through

16, like Plaintiff's objections, are not objections to the admissibility of

evidence, but Plaintiff's characterization of such evidence and whether the

evidence creates a triable issue of fact. Therefore, the Court declines to rule

on Defendant's "evidentiary objections."

IV.

DISCUSSION

Defendant

owns the property located at 622 South 6th Street, Alhambra, California 91801

("Property"). (Defendant's Undisputed Material Fact ("UMF") No. 2.) The

Property was managed by co-defendant Tse Realty and Management Services ("Tse

Realty"), a property management company. (UMF Nos. 3, 15-16.) The Property has

one driveway with two drains; one of the drains is in the middle of the

driveway. (UMF No. 20.) The drains were required to be cleaned about once a

year. (UMF No. 21.) Tse Realty hired Kenny Wan ("Wan") to perform the drain

cleaning. At the time of the incident, Plaintiff had been working full time for

Wan for 14 years. He was paid \$200 a day for his work, which included painting,

wood floor and tile installation, cleaning roofs, plumbing, drywall, and

cleaning drainage. Plaintiff had performed work on the drainage line at the

Property on about five to six occasions prior to the incident, with the last

time being eight or nine months before.

Plaintiff

alleges he was Defendant's employee and that Defendant failed to obtain worker's compensation insurance. Plaintiff seeks damages for injuries sustained while he was operating drain cleaning equipment on January 11, 2023. Plaintiff alleges Defendant negligently and recklessly managed, maintained, owned, supervised, and oversaw the Subject Premises by allowing a drain to exist on or in the driveway which required periodic cleaning, exposing workers to the danger of being struck by vehicles, which is what allegedly occurred here.

A.

Second

Cause of Action for Violation of Labor Code § 3706

Defendant

argues that the undisputed material facts establish that Plaintiff was an independent contractor, not an employee, and that Labor Code section 3706 does not apply because Defendant was not required to obtain workers' compensation coverage for an independent contractor.

First,

Defendant contends that the drain cleaning work did not require a license. (Motion, p. 9.) Defendant refers to Business and Professions Code section 7048, which provides that the chapter regulating contractors and requiring licenses "does not apply to any work or operation on one undertaking or project by one or more contracts, the aggregate contract price which for labor, materials, and all other items, is less than five hundred dollars (\$500), that work or operations being considered of casual, minor, or inconsequential nature." Defendant argues that a license was not required to perform the drain clearing work in the driveway because the work would have cost between \$200 to \$300, which is under the \$500 threshold. While Wan had not yet invoiced Tse for the work and had not discussed with Tse how much the drain cleaning would cost, Wan testified that he would have charged somewhere between \$200 or \$300 and, in the past, similar work was performed in the driveway for \$300 on December 5, 2022. (UMF Nos. 37-41.)

In

opposition, Plaintiff argues that Business and Professions Code section 7048 does not apply because the work was not "casual, minor, or inconsequential." (Opp., p. 8.) Plaintiff contends that the \$500 threshold was exceeded because the cost to perform five drain cleaning jobs at the Property totals between \$1,300 and \$1,400. (Opp., p. 8.) However, the five drain cleaning jobs took

place over the course of four years and there is no evidence that these jobs were part of a single undertaking or project. (Plaintiff's Additional Material Fact ("AMF") No. 97.)

Accordingly, Plaintiff fails to show that triable issues exist regarding his role as an independent contractor and that he can show a violation of Labor Code section 3706.

B. Third Cause of Action for Premises Liability

Under

California law, the general rule is that the liability of a party, such as Defendant, who hires an independent contractor does not extend to the independent contractor's employees. (Privette v. Superior Court (1993) 5 Cal.4th 689, 692; see also SeaBright Insurance Company v. US Airways, Inc. (2011) 52 Cal.4th 590, 594 ["By hiring an independent contractor, the hirer implicitly delegates to the contractor any tort law duty it owes to the contractor's employees to ensure the safety of the specific workplace that is the subject of the contract."])

Defendant

argues that Privette applies and that none of the exceptions to the Privette rule are applicable in this case. Defendant argues: (1) Defendant did not retain control over the work or negligently exercise that control as to affirmatively contribute to the worker's injury, and (2) there is no concealed hazardous condition on the Property that Defendant failed to warn of, that both Wan and Plaintiff did not know and could not have reasonably discovered. (Kinsman v. Unocal Corp. (2005) 37 Cal.4th 659, 664 (Kinsman); Hooker v. Dept. of Transportation (2002) 27 Cal.4th 198, 210 (Hooker).)

1. The Retained Control Exception (Hooker)

In order for

a worker to recover on a retained control theory, the hirer must engage in some active participation. (Tverberg v. Fillner Construction Inc. (2012) 202 Cal.App.4th 1439, 1446 (Tverberg).) An affirmative contribution may take the form of actively directing a contractor or an employee about the manner of performance of the contracted work. (Ibid.)

Defendant

argues that there was no control exercised over how Plaintiff performed the drain clearing work he was hired to do. Plaintiff was driven to the Property by Wan, who provided a snake for him to use. Plaintiff was left at the Property to perform the work and no one else was present when he began; also, no one gave him instructions or supervised his work. Neither Tse Realty nor Defendant directed the timing of the work; they also did not instruct Plaintiff or control the means, methods, or procedures used by Plaintiff to complete the work.

In

opposition, Plaintiff argues that Defendant is liable because Tse Realty negligently failed to coordinate the work of separate concurrent contractors while retaining control over the contractors' schedules. Plaintiff contends that "[t]his case is squarely governed by Tverberg", but Plaintiff fails to provide a pin cite and Tverberg does not address a hirer's retained control, but the issue of delegation where on-the-job injuries arise from a special or peculiar risk inherent in the work. (Tverberg, supra, 49 Cal.4th at p. 526.) Plaintiff also claims Defendant "controlled the master schedule that placed a sensory-deprived worker and a reversing commercial truck in the same lethal space at the same time, without halting traffic or warning either party," but there is no evidence of affirmative control because it is undisputed that Wan did not disclose the date and time he and Plaintiff would come to the Property to perform the work. (Opp., p. 10; UMF No. 29.) Therefore, Plaintiff fails to show any triable issue regarding Defendant's control of the work Plaintiff performed.

2. The Concealed

Hazardous Condition Exception (Kinsman)

Under the

hazardous conditions on property exception set forth in Kinsman, a hirer is liable for injuries sustained by an employee of an independent contractor if: "[1] the landowner knew, or should have known, of a latent or concealed preexisting hazardous condition on its property, [(2)] the contractor did not know and could not have reasonably discovered this hazardous condition, and [(3)] the landowner failed to warn the contractor about this condition." (Kinsman, supra, 37 Cal.4th at p. 678.)

Defendant

argues that no hazardous condition existed on the Property which Plaintiff could not have discovered himself. Plaintiff was aware that he was working in a driveway and knew that cars would be in the area; he placed an orange bucket so that people could see he was working in the area. The fact that cars might enter the driveway while Plaintiff was working there is not a concealed hazard; it is an easily apparent, if not inherent, condition of the driveway that Plaintiff was aware of and assumed. (Tverberg, supra, 49 Cal.4th at pp. 528-529.)

In

opposition, Plaintiff argues that a "lethal, concealed trap" existed because:

(1) he was "physically required to kneel at ground level, looking downward into the drain, with his back to the street" while clearing the drain using a motorized snake that generated loud mechanical noise, (2) the geometry of the driveway's gradual incline, compared with the commercial F-150 scout truck's aftermarket rear metal forks, obscured the truck driver's line-of-sight, and (3) no physical inspection could reveal that waste collection would occur at 7:00 a.m. (AMF Nos. 92-93, 98.) These specifics, however, do not raise a triable issue of fact because the risk of encountering motor vehicles while working in a driveway with loud motorized equipment remains the same. (UMF Nos. 59, 65, 67-70.)

Based

on the above, Defendant's motion for summary judgment on Plaintiff's Complaint is GRANTED.

C. Consolidated

Disposal Service's Cross-Complaint

Since Defendant

is not liable to Plaintiff, the claims for indemnification and apportionment of fault asserted by Consolidated Disposal Service in its cross-complaint fail and Defendant's motion for summary judgment on the cross-complaint is GRANTED.

VI. CONCLUSION

Defendant's

motion for summary judgment on Plaintiff's operative First Amended Complaint and Consolidated Disposal Services' Cross-Complaint is GRANTED.

Defendant to give notice.

Dated

this 28th

day of August

2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.